

Control of International Trade in Endangered Wild Fauna and Flora Act, 2017

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Control of International Trade in Endangered Wildlife and Fauna Act, 2073 (2017)

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Amending Act

1. Control of International Trade in Endangered Wildlife and Fauna (First Amendment) Act, 2075 (2018)
2075.11.10 (February 22, 2019)

Act Number 2 of the Year 2074 (2017)

An Act Made to Regulate and Control the International Trade in Endangered Wildlife and Fauna

Preamble: Whereas, it is desirable to make necessary legal provisions for the conservation of various species of endangered wildlife and fauna and for the regulation and control of their international trade in order to implement the Convention on International Trade in Endangered Species of Wild Fauna and Flora, 1973, to which Nepal is a party,

Now, therefore, the Legislature-Parliament, in accordance with sub-article (1) of Article 296 of the Constitution of Nepal, has enacted this Act. Chapter-1

Preliminary

1. Short Title, Extent and Commencement: (1) This Act may be called the "Control of International Trade in Endangered Wildlife and Fauna Act, 2073 (2017)."

(2) This Act shall apply throughout Nepal and shall also apply to any person who, while residing or staying anywhere outside Nepal, commits an act deemed to be an offence under this Act.

(3) This Act shall commence immediately. 2.

Definitions: Unless the subject or context otherwise requires, in this Act,- (a) "Certificate" means a certificate issued pursuant to sub-section (1) of Section 6 and sub-section (3) of Section 8. (b) "Investigating Officer" means an Investigating Officer pursuant to Section 23. (c) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. (d) "Rare wildlife or fauna" means any species or sub-species of wildlife or fauna listed in Appendix-I of the Convention. (e) "Specimen" means the following things: (1) Any living or dead body of endangered wildlife or any organ, part, blood, tooth, nail, bone, skin, hair, horn or any substance of such wildlife, or any object made of, prepared from, or in which such substance is used; and (2) Any endangered flora, or any part, piece, stem, branch, leaf, fruit, flower, seed, bark, root or any substance of such flora, or any object made of, prepared from, or in which such substance is used added by the First Amendment. or its essence. (f) "Export" means the act of exporting out of Nepal and said word also denotes re-export. (g) "Captive Breeding" means the act of breeding by conserving rare

wildlife ex-situ for the purpose of conserving the lineage and thereby producing first generation wildlife, or the act of planting, rearing, growing rare flora ex-situ for the purpose of conserving the lineage and thereby producing seeds or seedlings. (h) "Convention" means the Convention on International Trade in Endangered Species of Wild Fauna and Flora (CITES) concluded on the 3rd day of March, 1973, at Washington D.C., United States of America. (i) "Endangered wildlife or fauna" means any species or sub-species of wildlife or fauna listed in Appendix-II of the Convention. (j) "Scientific Authority" means a Scientific Authority pursuant to Section 18. (k) "Management Authority" means a Management Authority pursuant to Section 16. (l) "Endangered wildlife or fauna" means rare wildlife or fauna, endangered wildlife or fauna and protected wildlife or fauna. (m) "Conservator" means a person deployed by the Government of Nepal for the conservation and management of a national park, reserve, conservation area or buffer zone. (n) "Protected wildlife or fauna" means any species or sub-species of wildlife or fauna listed in Appendix-III of the Convention. (o) "Institution" means an organized institution established pursuant to the prevailing law with the objective of carrying out work related to wildlife or fauna. Chapter-2 Provisions Relating to Dealing in Endangered Wildlife or Fauna or its Specimen 3.

Prohibition on Dealing or Trading in Rare or Endangered Wildlife or Fauna or its Specimen: (1) No person shall buy, sell, keep in possession, use, plant, rear, captive breed, transport, export or import, or cause to do so, any rare or endangered wildlife or fauna or its specimen. (2) Notwithstanding anything contained in sub-section (1), a person may keep, use, captive breed, transport, export or import rare or endangered wildlife or fauna or its specimen, upon obtaining a certificate pursuant to Section 6 and subject to the conditions as prescribed, for the following purposes: (a) To rear wildlife, (b) To plant and rear flora, (c) To produce wildlife or flora or its specimen, to buy and sell domestically or abroad, (d) To use for study, research, examination, training, exhibition, conservation education, biological resource conservation or educational purposes. added by the First Amendment.(3) Notwithstanding anything contained in sub-sections (1) and (2), a person may plant endangered flora on private land, rear endangered flora so planted and naturally sprouted on private land, and produce, keep and use its specimen. 4. Requirement to Apply for Certificate: A person, institution or body wishing to perform any act under sub-section (2) of Section 3 shall apply for a certificate to the Management Authority amended by the First Amendment.in the format as prescribed. 5. Requirement to Seek Consultation: (1) Upon an application for a certificate under Section 4, the Management Authority shall seek consultation with recommendation from the Scientific Authority in that regard. (2) Upon a request for consultation with recommendation under sub-section (1), the Scientific Authority shall study the matter and, if satisfied that granting such certificate will not adversely affect the existence of the species of rare or endangered wildlife or fauna in Nepal, recommend the Management Authority to grant such certificate. (3) The procedure to be followed by the Scientific Authority while recommending under sub-section (2) shall be as prescribed. 6.

Power to Issue Certificate: (1) Upon receipt of a recommendation from the Scientific Authority under Section 5, and if the Management Authority is satisfied that the following conditions exist, the Authority may issue a certificate as prescribed to the person, institution or body applying for the certificate: (a) In case an application for a certificate is made for a purpose other than import, that such wildlife or fauna or its specimen appears to be in the ownership or control of the person, institution or body applying for the certificate; (b) In case an application for a certificate is made for a purpose other than import, that such wildlife or fauna or its specimen appears to have been obtained by the person, institution or body applying for the certificate in accordance with the prevailing law; (c) That a certificate of health for such wildlife or fauna or its specimen obtained from the concerned body is submitted; (d) In the case of live wildlife, that there are sufficient and appropriate arrangements for its transport and that there are reasonable grounds to believe that during

transport the wildlife will not be injured, harmed in health, or subjected to cruel treatment; (e) In case such wildlife or fauna or its specimen is to be exported to a country, that an import permit or letter of intent to issue a permit for such wildlife or fauna or its specimen granted by the competent authority of that country is submitted, or in case such wildlife or fauna or its specimen is to be imported into Nepal from a country, that an export permit or letter of intent to issue a permit for such wildlife or fauna or its specimen granted by the competent authority of that country is submitted; (f) In case such wildlife or fauna or its specimen is to be imported into Nepal, that it appears it will be used only for the purpose for which it is being imported and not for commercial purposes; (g) In case such wildlife or fauna or its specimen is to be exported to a country, that an assurance letter from the competent authority of that country is submitted to the effect that its use in that country will not be for commercial purposes. added by the First Amendment.(1a) Notwithstanding anything contained in clauses (e) and (f) of sub-section (1), while exporting endangered flora and fauna or its specimen, such permit or assurance letter provided by the importing country shall not be required. (2) To be satisfied of the existence of the conditions under sub-section (1), the Management Authority may, as necessary, require the original document or a copy, and the concerned person, institution or body shall submit the documents requested accordingly to the Management Authority. (3) While issuing a certificate under sub-section (1), the Management Authority may specify in the certificate necessary conditions regarding the use, management, rearing, conservation, habitat, means or route of transport, etc., of such wildlife or fauna or its specimen, and it shall be the duty of the concerned person, institution or body obtaining the certificate to comply with such conditions. (4) The person, institution or body obtaining the certificate shall use or cause to be used such wildlife or fauna or its specimen only for the same purpose for which the certificate was issued by the Management Authority under sub-section (1). (5) A certificate granted under this section shall be valid only for the purpose of the person, institution or body that obtained it and shall not be transferable for use by another person, institution or body. (6) In case the person, institution or body obtaining the certificate does any act contrary to sub-section (3), (4) or (5), the Management Authority may, after completing the procedure as prescribed, revoke the certificate at any time. (7) Provisions relating to the validity period, renewal, fee and cancellation of the certificate shall be as prescribed.

Provided that, the wildlife or fauna or its specimen used as seed, in accordance with the certificate, to produce such wildlife or fauna, shall itself be considered rare wildlife or fauna or its specimen. 8. Permissible Dealing in Specimen of Protected Wildlife or Fauna: (1) A person, institution or body wishing to rear protected wildlife, or plant, rear protected flora, or keep in possession, use, produce, trade as seed, transport, export or import the specimen of such wildlife or fauna shall obtain a certificate.

added by the First Amendment.Provided that, a person shall not require to obtain such a certificate to plant protected flora on private land, rear protected flora so planted and naturally sprouted on private land, and produce, keep and use its specimen.

(2) A person, institution or body wishing to obtain a certificate under sub-section (1) shall submit an application to the Management Authority as prescribed.

(3) Upon receipt of an application under sub-section (2), and upon being satisfied of the following after inquiry, the Management Authority may, after consulting the Scientific Authority, grant a certificate as prescribed for some or all purposes under sub-section (1):

(a) In case an application for a certificate is made for a purpose other than import, that such wildlife or fauna or its specimen appears to be in the ownership or control of the person, institution or body applying for the certificate;

(b) In case an application for a certificate is made for a purpose other than import, that such wildlife or fauna

or its specimen appears to have been obtained by the person, institution or body applying for the certificate in accordance with the prevailing law;

(c) In the case of transporting live wildlife, that there are sufficient arrangements for its transport and that there are reasonable grounds to believe that during transport the wildlife will not be injured, harmed, or subjected to cruel treatment.

(4) While issuing a certificate under sub-section (3), the Management Authority may, as necessary, stipulate conditions regarding the method of keeping, using, rearing, planting, rearing and producing such wildlife or fauna or its specimen, and regarding the route, method of transport, habitat and other necessary matters for trading as seed, transporting, exporting or importing such wildlife or fauna or its specimen, and it shall be the duty of the concerned person, institution or body obtaining the certificate to comply with such conditions.

(5) In case the conditions under sub-section (4) are not complied with, the Management Authority may, after completing the procedure as prescribed, revoke such certificate at any time.

(6) Provisions relating to the validity period, renewal, cancellation, fee and other procedures of a certificate issued under this section shall be as prescribed. 9.

Requirement of Certificate of Origin and Export Permit: Notwithstanding anything contained in Section 8, while importing any specimen of protected wildlife or fauna, a certificate of origin and an export permit provided by the country that included the species of such wildlife or fauna in Appendix-III of the Convention shall be required. 10. Special Provision Relating to Re-export: (1) Endangered wildlife or fauna or its specimen, once imported into Nepal, shall not be re-exported without a re-export certificate granted under this section. (2) A person, institution or body wishing to re-export endangered wildlife or fauna or its specimen under sub-section (1) shall submit an application to the Management Authority. (3) Upon receipt of an application under sub-section (2), and if the endangered wildlife or fauna or its specimen sought to be re-exported was imported into Nepal in accordance with this Act or the prevailing law, the Management Authority may, after completing the procedure under Section 6 or 8, grant a certificate for re-export. 11. No Risk to the Existence of Wildlife or Fauna: (1) Notwithstanding anything contained in Sections 6, 8 and 10, while granting a certificate pursuant thereto, it shall be granted ensuring that the existence of such wildlife or fauna will not become extinct or further endangered or at risk, and that it will be used only for the purpose for which the certificate is granted. (2) After granting a certificate to deal in endangered wildlife or fauna or its specimen under this Act, the Management Authority or the body authorized by it shall regularly monitor or inspect how the person, institution or body obtaining such certificate has used such wildlife or fauna or its specimen. (3) While monitoring or inspecting under sub-section (2), if the person, institution or body obtaining the certificate is found to have used the endangered wildlife or fauna or its specimen contrary to the conditions of the certificate, the body conducting the monitoring or inspection may confiscate or take control of such wildlife or fauna or its specimen at any time. (4) In case the person obtaining the certificate exports the endangered wildlife or fauna or its specimen, the Management Authority or the body authorized by it shall regularly contact the competent authority of the country of export in the manner prescribed for the purposes of this section. 12. Must be a Party State to the Convention: Notwithstanding anything contained elsewhere in this Chapter, a certificate for export of endangered wildlife or fauna or its specimen shall only be granted to a country that is a party to the Convention. Chapter-3 Provisions Relating to Registration of Endangered Wildlife or Fauna or its Specimen 13.

Requisite Registration of Species of Endangered Wildlife or Fauna: (1) If, at the time of commencement of this Act, any person, with or without obtaining a certificate, possesses or uses any living endangered for the

purposes of study, research, examination, training, display, conservation education, biological resource conservation, educational purposes or any other purpose removed by the First Amendment. or if any endangered wildlife is reared or domesticated for profit, the concerned person, institution or body shall, amended by the First Amendment. within the prescribed period, submit an application as prescribed to the Management Authority to register such wildlife or fauna. (2) Upon receipt of an application under sub-section (1), if the Management Authority is satisfied that such wildlife removed by the First Amendment. is kept or used not contrary to the prevailing law, the Authority shall register such wildlife or fauna as prescribed and provide a registration certificate to the concerned person, institution or body. (3) Wildlife kept without completing the procedure under this section shall be removed by the First Amendment. confiscated as prescribed. (4) The validity period, renewal, registration fee and other provisions of the registration certificate given under this section shall be as prescribed. 14. Requisite Registration of Imported Endangered Wildlife or Fauna or its Specimen: (1) Endangered wildlife or fauna or its specimen imported into Nepal in accordance with this Act or the rules made under this Act shall be registered as prescribed. (2) For the registration of wildlife or fauna or its specimen under sub-section (1), the concerned person, institution or body shall submit an application to the Management Authority within thirty-five days of importing such wildlife or fauna or its specimen, attaching the following documents: (a) The permit issued by the competent authority of the concerned country for the export of such wildlife or fauna or its specimen, (b) The certificate of origin of the specimen of such wildlife or fauna, (c) The certificate issued by the Management Authority for import, (d) The receipt showing payment of customs duty, (e) The certificate of health of the specimen of such wildlife or fauna. (3) After necessary inquiry regarding the application submitted under sub-section (2), if it appears that such wildlife or fauna or its specimen was imported in accordance with this Act or the rules made under this Act, the Management Authority shall register such wildlife or fauna or its specimen and provide a registration certificate as prescribed to the concerned person, institution or body. 15.

Prohibition on Transfer: (1) No right, title or interest in any endangered wildlife or fauna or its specimen registered under Section 13 or 14 shall be transferred or transferred in name without the permission of the Management Authority or an officer as prescribed. (2) Provisions relating to granting permission for transfer of right, title or interest or transfer in name of endangered wildlife or fauna or its specimen under sub-section (1) shall be as prescribed. Chapter-4 Provisions Relating to Management Authority and Scientific Authority 16. Management Authority: (1) For the purposes of this Act, the following bodies shall be considered as the Management Authority: (a) The Department of National Parks and Wildlife Conservation, in relation to wildlife or its specimen; (b) The Department of Forests and Soil Conservation, in relation to flora or its specimen. (2) Notwithstanding anything contained in sub-section (1), the Government of Nepal may, by notification in the Nepal Gazette, designate a specific body as the Management Authority for specific wildlife or fauna or its specimen. 17. Functions, Duties and Powers of Management Authority: In addition to the functions, duties and powers mentioned elsewhere in this Act, the functions, duties and powers of the Management Authority shall be as follows: (a) To regularly monitor whether endangered wildlife or fauna or its specimen is being exported or imported in accordance with this Act or the rules made under this Act, (b) To revoke the certificate if the person, institution or body obtaining the certificate violates this Act, the rules made under this Act, or the conditions stipulated in the certificate, (c) To conduct or cause to conduct study, research and publicity regarding endangered wildlife or fauna, (d) To prepare periodic reports on behalf of the Government of Nepal on policy, institutional and legal measures required to be taken regarding the status of implementation of the Convention, (e) To make other necessary arrangements related to the implementation of the Convention, and (f) To perform other functions as prescribed. 18. Scientific Authority: (1) For the purposes of this Act, the following bodies shall be considered as the Scientific Authority: (a) The Natural

History Museum, Tribhuvan University, in relation to wildlife or its specimen, (b) The Department of Plant Resources, in relation to flora or its specimen. (2) Notwithstanding anything contained in sub-section (1), the Government of Nepal may, by notification in the Nepal Gazette, designate a specific body as the Scientific Authority for specific wildlife or fauna or its specimen. 19.

Functions, Duties and Powers of Scientific Authority: In addition to the functions, duties and powers mentioned elsewhere in this Act, the functions, duties and powers of the Scientific Authority shall be as follows: (a) To regularly conduct study and research on the status of the existence of endangered wildlife or fauna found within the territory of Nepal and provide necessary consultation to the Management Authority, and to publish reports as necessary regarding such study and research, (b) To issue health certificates for endangered wildlife or fauna or its specimen, (c) To provide necessary advice or consultation to the Management Authority regarding species of endangered wildlife or fauna, (d) To make decisions regarding the introduction, identification and classification of various species of endangered wildlife or fauna, (e) To conduct or cause to conduct publicity on scientific and technical subjects of species of endangered wildlife or fauna listed in the Convention, (f) To coordinate among various bodies related to the Convention for the conservation of endangered wildlife or fauna, and (g) To perform other functions as prescribed. Chapter-5

Offences and Penalties 20. Acts Deemed as Offence: If any person commits any of the following acts, he/she shall be deemed to have committed an offence under this Act: (a) Buying, selling, keeping in possession, using, rearing, planting, cultivating, captive breeding, transporting, exporting or importing, or causing to do so, rare or endangered wildlife or fauna or its specimen contrary to Section 3, (b) Buying, selling, keeping in possession, using, rearing, planting, cultivating, transporting, exporting or importing, or causing to do so, protected wildlife or fauna or its specimen contrary to Section 8, (c) Failing to register endangered wildlife or fauna or its specimen pursuant to Section 13 or 14, (d) Transferring right, title or interest or transferring in name of endangered wildlife or fauna or its specimen without permission under Section 15, or (e) Committing any act other than those mentioned in clauses (a), (b), (c) and (d) contrary to this Act or the rules made under this Act. 21.

Penalties: (1) A person committing the following offences shall be punished as follows: (a) A person committing an offence related to rare wildlife or its specimen under clause (a) of Section 20 shall be liable to imprisonment for a term ranging from five years to fifteen years or a fine ranging from five hundred thousand rupees to one million rupees or both, according to the gravity of the offence; and a person committing an offence related to rare flora or its specimen shall be liable to imprisonment for a term ranging from one year to five years or a fine ranging from one hundred thousand rupees to five hundred thousand rupees or both, according to the gravity of the offence. (b) A person committing an offence related to endangered wildlife or its specimen under clause (a) of Section 20 shall be liable to imprisonment for a term ranging from two years to ten years or a fine ranging from one hundred thousand rupees to five hundred thousand rupees or both, according to the gravity of the offence; and a person committing an offence related to endangered flora or its specimen shall be liable to imprisonment for a term ranging from six months to one year or a fine ranging from fifty thousand rupees to one hundred thousand rupees or both, according to the gravity of the offence. (c) A person committing an offence related to protected wildlife or its specimen under clause (b) of Section 20 shall be liable to imprisonment for a term ranging from one year to five years or a fine ranging from twenty thousand rupees to one hundred thousand rupees or both; and a person committing an offence related to protected flora or its specimen shall be liable to imprisonment for a term ranging from one month to six months or a fine ranging from one thousand rupees to fifty thousand rupees or both, according to the gravity of the offence. (d) A person committing an act contrary to clauses (c) and (d) of Section 20 shall be liable to a fine ranging from fifty thousand rupees to one hundred thousand rupees, according to the gravity of the

offence. (e) A person committing any act under clause (e) of Section 20 shall be liable to a fine ranging from one thousand rupees to twenty-five thousand rupees, according to the gravity of the offence. (f) A person who aids, abets, incites the commission of any offence under this Act, or attempts to commit such an act, shall be liable to half the punishment prescribed for the principal offender. (2) An abettor who assists or provides any kind of support to a person committing any act deemed to be an offence under this Act shall be liable to half the punishment prescribed for the principal offender. (3) A person obstructing or opposing investigation work related to an offence under this Act shall be liable to imprisonment for a term up to three months or a fine up to five thousand rupees or both.

22. Forfeiture: Endangered wildlife or fauna or its specimen related to an offence under this Act, as well as other objects, materials, weapons and vehicles used in such offence, shall be forfeited. Chapter-6
Investigation and Filing of Case

23. Investigating Officer: (1) The authority to investigate offences under this Act shall vest in:

- In the case of a National Park, Reserve, Conservation Area or Buffer Zone: the concerned Conservator or an officer-level employee designated by him/her;
- In other areas, in a district where a District Forest Office exists: the District Forest Officer or an officer-level employee designated by him/her;
- In a district where a District Forest Office does not exist: an officer-level employee designated by the Government of Nepal.

(2) Notwithstanding anything contained in sub-section (1), the Government of Nepal may, by notification in the Nepal Gazette, form a joint investigation team or designate any officer of the Government of Nepal for the investigation of offences under this Act.

(3) While investigating an offence, the Investigating Officer or team under sub-section (1) or (2) may exercise the following powers:

- (a) To immediately arrest the offender and take necessary action,
- (b) To search or cause to search any office, house, building, godown, vehicle or any other place in accordance with the prevailing law while investigating an offence under this Act or collecting evidence,
- (c) To seize endangered wildlife or fauna or its specimen related to the offence and other objects, materials, weapons, vehicles and evidence obtained,
- (d) To exercise necessary powers as an Investigating Officer in accordance with the prevailing law while investigating the offence.

(4) While investigating an offence under this Act, the Investigating Officer shall have the same powers as a police officer under the prevailing law regarding taking statements of the accused, preparing site inspection reports, and other investigation-related work.

(5) It shall be the duty of security agencies to provide necessary assistance in the investigation and inquiry work of offences under this Act. 24.

Power to Detain the Accused: (1) If there are sufficient reasons to believe that a person against whom proceedings are initiated under this Act may destroy or conceal any evidence, or may obstruct, hinder or adversely affect the investigation, the Investigating Officer may, stating reasons, issue an arrest warrant in accordance with the prevailing law and detain him/her. (2) Notwithstanding anything contained in sub-section (1), if an accused person is to be detained, he/she must be produced before the judicial officer having jurisdiction over the case within twenty-four hours of arrest, excluding travel time, and detained only with the

permission of that officer. (3) Upon a request for permission to detain under sub-section (2), the judicial officer having jurisdiction over the case may grant permission to detain for up to a maximum of ninety days, not exceeding thirty days at a time, considering whether the investigation is satisfactory or not. 25. Filing of Case: (1) In cases related to offences under this Act, the Government of Nepal shall be the plaintiff. (2) After the investigation of an offence under this Act is completed, the Investigating Officer shall forward the case to the concerned Government Attorney for a decision on whether to prosecute or not, and if the Government Attorney decides to prosecute, the Investigating Officer shall file the case. 26. Court Having Jurisdiction: The concerned District Court shall have the jurisdiction to hear cases related to offences under this Act. Chapter-7 Miscellaneous 27.

Special Powers of the Government of Nepal: (1) Notwithstanding anything contained in Sections 3 and 8, upon the request of a country that supports the Government of Nepal's efforts for the conservation of endangered wildlife or fauna, or provides technical assistance to make study or research fruitful for that purpose, the Government of Nepal may provide, as a gift symbolizing the goodwill of the Nepali people and the Government of Nepal, up to one pair of any species of endangered wildlife or its specimen, or any endangered flora or its specimen in the prescribed number or quantity, in any fiscal year, to such country for the purposes of study, conservation education or research. (2) The Government of Nepal must obtain an assurance through diplomatic channels from the concerned country, before providing wildlife or fauna or its specimen under sub-section (1), that it will not be used for commercial purposes. (3) The Ministry of Forests and Soil Conservation shall submit an annual report regarding the wildlife or fauna or its specimen provided under sub-section (1) to the concerned committee of the Federal Parliament within three months of the end of each fiscal year. (4) Notwithstanding anything contained elsewhere in this Act, the Government of Nepal may keep, use any endangered wildlife or fauna or its specimen for the purposes of study, research, observation, monitoring, examination, biological resource conservation or conservation education; and if it is rare wildlife, produce a first generation through captive breeding; and if it is rare flora, artificially produce seeds and seedlings, plant or rear them. 28. Non-application during Transit: (1) Notwithstanding anything contained in Sections 3, 8 and 10, the provisions of this Act shall not apply when a sealed consignment of endangered wildlife or fauna or its specimen is in transit through the territory of Nepal from another country to a third country. (2) The sealed consignment under sub-section (1) shall remain under the monitoring of the Scientific Authority or the concerned quarantine officer during its stay in Nepal. 29. Act Not Deemed as Commercial Dealing: Notwithstanding anything contained in the prevailing law, arranging the viewing or exhibition of any endangered wildlife or fauna or its specimen, charging a nominal fee not exceeding the rate prescribed for tourism, cultural promotion, traditional knowledge promotion, educational, recreational, sports, research, or aesthetic purposes, shall not be deemed as a dealing for commercial purposes. 30.

Provided that, even if alive, wildlife or fauna or its specimen that would be harmful to conserve or would adversely affect native endangered wildlife or fauna of Nepal shall be destroyed.

(c) Auction in accordance with the prevailing law endangered or protected wildlife or fauna or its specimen that does not appear necessary or feasible to conserve,

(d) Provide to a public institution or body for educational, scientific, study, research purposes or for religious purposes, with necessary conditions, or

(e) Manage or cause to manage in other ways as prescribed.

(2) Notwithstanding anything contained in sub-section (1), the Government of Nepal shall write to the concerned authority to return to the country of origin the endangered wildlife or fauna or its specimen confiscated due to importation without completing the procedure under this Act.

(3) While writing under sub-section (2), if the concerned country wishes to take back such wildlife or fauna or its specimen, or upon the request of the competent authority of that country, such wildlife or fauna or its specimen may be returned to the concerned country by a decision of the Government of Nepal.

(4) The cost incurred in returning endangered wildlife or fauna or its specimen under sub-section (3) shall be borne by the country taking it back.

(5) The concerned country shall take back such wildlife or fauna or its specimen within ninety days from the date of the decision under sub-section (3).

(6) If the concerned country does not express its intention to take back upon writing under sub-section (2), or having expressed its intention, fails to take back within the period under sub-section (5), such wildlife or fauna or its specimen shall be managed by the Management Authority under sub-section (1).

(7) Before destroying any endangered wildlife or fauna or its specimen under sub-section (1), such wildlife or fauna or its specimen shall be sent to a laboratory as prescribed for scientific examination; and if from the report of such laboratory it appears that such wildlife or fauna or its specimen must be destroyed, it shall be destroyed as prescribed in the presence of representatives of the concerned District Court, District Administration Office and Local Level. 31.

National Coordination Committee on Endangered Wildlife and Fauna: (1) For the effective implementation of this Act and the Convention, and to recommend to the Government of Nepal on policy, legal and institutional measures to be adopted for the conservation and promotion of species of endangered wildlife or fauna, and to provide necessary support and coordination in the implementation of this Act, there shall be a National Coordination Committee on Endangered Wildlife and Fauna as follows: (a) Secretary, Ministry of Forests and Environment ? Coordinator (b) Joint Secretary, Ministry of Law, Justice and Parliamentary Affairs ? Member (c) Director General, Department of Customs ? Member (d) Director General, Department of National Parks and Wildlife Conservation ? Member (e) Director General, Department of Forests and Soil Conservation ? Member (f) Director General, Department of Plant Resources ? Member (g) Director General, Department of Postal Service ? Member (h) Deputy Inspector General of Police, Central Investigation Bureau, Nepal Police ? Member (i) Research Director, National Investigation Department ? Member (j) Executive Director, National Forensic Science Laboratory ? Member (k) Chief, Natural History Museum, Tribhuvan University ? Member (l) Officer designated by the Committee ? Member-Secretary (2) Experts from the concerned field may be invited to the meetings of the Committee under sub-section (1) as necessary. (3) The procedure for meetings of the Committee under sub-section (1) shall be as prescribed. 32. Publication of Names of Wildlife and Fauna: (1) The Government of Nepal shall publish in the Nepal Gazette for the information of the general public the scientific names, English names and, as far as possible, Nepali names of various species or sub-species of wildlife and fauna listed